



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAY 17 2002

DOT-E 11962
(FOURTH REVISION)

EXPIRATION DATE: April 30, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Bayer Corporation
Pittsburgh, PA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a non-DOT specification specially designed pressure vessel containing Sodium. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.212, in that a non-DOT specification packaging is not authorized.
5. BASIS: This exemption is based on the application of the Bayer Corporation dated September 20, 2001, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials Description	Hazard Class/Division	Identification Number	Packing Group
Sodium	Division 4.3	UN1428	I

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a steel pressure vessel designed and constructed in accordance with Section VIII of the ASME Code with a maximum allowable working pressure of 150 psig. The vessel must conform with Drawing D 2116-282, Rev. B, dated November 2, 1966, which is on file with the Office of Hazardous Materials Exemptions and Approvals.

8. SPECIAL PROVISIONS:

a. The pressure vessel authorized by this exemption must be shipped in a strong outside packaging which will provide protection during transportation.

b. The Sodium must be padded with Argon gas or other inert material during transportation.

c. The vessel authorized by this exemption must be shipped in compliance with the requirements of § 177.838.

d. MARKING - In addition to the requirements of Part 172, the packaging must be marked "DOT-E 11962".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation laws 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

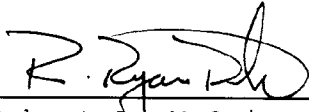
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must

receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



fr Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.

Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

po: sdc